

GARE PELMA SECTOR IV/6 JSPL COAL
MINES

AREA - 93.566 HA.

Encl:- 1. 1st stage Approval letter
30/12/2010

2. 2nd stage Approval letter
10/09/2024

3. 2nd stage Approval letter
27/01/2023

F. No. 8-61/2009-FC
Government of India
Ministry of Environment and Forests
(FC Division)

Paryavaran Bhawan, CGO Complex,
Lodhi Road, New Delhi - 110510.
Dated: 30th December, 2010.

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur.

Sub: Diversion of 93.566 ha forest land for open cast mining in Gare Pelma coal block IV/6 coal block in favour of M/s Jindal Steel & Power Limited in Tamnar range in Raigarh district of Chhattisgarh.

Sir,

I am directed to refer to the State Government's letter no. F - 5 - 14 / 2009 / 10 - 2 dated 13.08.2009 on the subject mentioned above seeking prior approval of the Central Government under section-2 of the Forest (Conservation) Act, 1980 and to say that the proposal has been examined by the Forest Advisory Committee constituted by the Central Government under section-3 of the said Act.

After careful examination of the proposal of the State Government, the Central Government hereby conveys the recommendations of the Forest Advisory Committee for diversion of 93.566 ha forest land for open cast mining in Gare Pelma coal block IV/6 coal block in favour of M/s Jindal Steel & Power Limited in Tamnar range in Raigarh district of Chhattisgarh subject to fulfillment of the following conditions:

1. (i) Compensatory Afforestation (CA) shall be raised and maintained over non-forest land equal in extent to the forest land proposed to be diverted.
- (ii) The State Government shall immediately transfer and mutate the non-forest land identified for CA in favour of the State Forest Department.
- (iii) The land identified for the purpose of CA shall be clearly depicted on a Survey of India toposheet of 1:50,000 scale.
- (iv) The non-forest land identified for raising Compensatory Afforestation shall be notified by the State Government as RF under Section-4 or PF under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act, as the case may be, within a period of six months. The Nodal Officer (Forest Conservation) shall report compliance in this regard.
2. The User Agency shall create, fence and maintain a proper safety zone around the mining area. The User Agency shall deposit funds with the Forest Department for the creation, protection and regeneration of the safety zone area, and also shall bear the cost of afforestation over one and a half time of the safety zone area in degraded forest elsewhere.
3. The following activities shall be undertaken by the User Agency under supervision of the State Forest Department at the project cost:

- i. Proper mitigative measures to minimize soil erosion and choking of streams shall be prepared and implemented.
 - ii. Planting of adequate drought hardy plant species and sowing of seeds to arrest soil erosion.
 - iii. Construction of check dams, retention/toe walls to arrest sliding down of the excavated material along the contour.
 - iv. No damage shall be caused to the top-soil and the user agency will follow the top soil management plan.
4. The State Government shall charge the Net Present Value of the forest area diverted under this proposal from the User Agency as per the Judgement of the Hon'ble Supreme Court of India dated 28.03.2008 & 09.05.2008 in IA No. 566 in WP (C) No. 202/1995 and as per the guidelines issued by this Ministry vide letter No. 5-3/2007-FC dated 05.02.2009 in this regard.
5. The User Agency shall furnish an undertaking to pay the additional NPV, if so determined, as per the final decision of Hon'ble Supreme Court of India.
6. All the funds received from the User Agency under the project shall be transferred to Ad-hoc CAMPA in account number CA 1591 of Corporation Bank, Block-11, CGO Complex, Phase-I, Lodhi Road, New Delhi - 110 510.
7. The period of diversion under this approval shall be twenty (20) years or coterminous with the mining lease subject to possession of valid lease by User Agency under the MMDR Act, 1957.
8. The forest land shall not be used for any purpose other than that specified in the proposal.
9. No labour camps shall be set up inside the forest area.
10. The user agency shall provide fuel wood preferably alternate fuel to the labourers working at the site to avoid damage / felling of trees.
11. The user agency will prepare a conservation plan for the project area under the guidance of the State Forest Department for maintenance and eco-restoration of the area at the project cost.
12. Any tree felling shall be done only when it is unavoidable under strict supervision of the State Forest Department.
13. No damage to the flora and fauna of the area shall be caused.
14. The user agency will obtain Environmental clearance and any other clearances required for such project.
15. The user agency will obtain the clearance under the provisions of ST&OTFD (Recognition of Forest Rights) Act, 2006 before the final approval and will submit certificate towards the settlement of all claims and rights over the proposed forest

land under the Act, along with the compliance report, as per the advisory dated 03.08.2009 issued by MoEF.

16. The Project Proponent shall earmark 1% of the market price of total coal produced deposit with the State Forest Department for the protection and development of forest and wildlife of the area as part of the CSR.
17. The Project Proponent shall also bear the cost of depredation of crops by wild elephants, if any, and if required, shall make arrangement for water and food for the migrating elephants at an alternate area.
18. As the user agency is operating large numbers of mines in the Mandraigarh coal fields, they will take up plantation in all the available areas in the Mandraigarh coalfields including soil and moisture conservation measures under the supervision and advice of the Forest Department.
19. The user agency, on a long term policy intervention, will explore the possibility of establishing vocational Training Institutes for training the local youth and employing them in their operations for a minimum period as a part of its CSR.
20. The user agency to give an undertaking to contribute proportionately for the regional wildlife management plan which is under preparation.
21. The user agency will explore the possibility of quarantining high crown density areas.
22. Any other condition that the CCF (Central), Regional Office, Bhopal, may impose from time to time for the protection and improvement of flora and fauna in the forest area.

After receipt of the compliance report on fulfillment of the conditions mentioned above, the Central Government shall consider the handing over of forest land for non-forest purposes under section-2 of the Forest (Conservation) Act, 1980.

Yours faithfully,

(C.D. Singh)

Sr. Assistant Inspector General of Forests

Copy to:-

1. The Principal Chief Conservator of Forests, Government of Chhattisgarh Raipur.
2. The Nodal Officer (FCA), O/o the PCCF, Government of Chhattisgarh Raipur.
3. The Chief conservator of Forest (Central), Eastern Regional Office, Bhopal.
4. User Agency.
5. Monitoring cell.
6. Guard File


(C.D. Singh)

Sr. Assistant Inspector General of Forests

F. No. 8-61/2009-FC
Government of India
Ministry of Environment, Forests and Climate Change
(Forest Conservation Division)

Indira Paryavaran Bhawan,
Alignaj, Jorbagh Road,
New Delhi - 110003
Dated: 10th September, 2014

To
The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur.

Sub: Diversion of 93.566 ha forest land for open cast mining in Gare Pelma coal block IV/6 coal block in favour of M/s Jindal Steel & Power Limited in Tamnar range in Raigarh district of Chhattisgarh.

Sir,

I am directed to refer to the State Government's letter no. F-5-14/09/10-2 dated 13.08.2009 on the subject mentioned above seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980. After careful examination of the proposal by the Forest Advisory Committee constituted under section-3 of the said Act, in-principle approval was granted vide this Ministry's letter of even number dated 30.12.2009 subject to fulfillment of certain conditions prescribed therein. The State Government has furnished compliance report in respect of the conditions stipulated in the in-principle approval and has requested the Central Government to grant final approval.

In this connection, I am directed to say that on the basis of the compliance report furnished by the State Government vide letter no. *Bhu-Prabandh/Khanij/331-26/1547* dated 8.07.2011, 12.01.2012 and 6.08.2014 and in compliance of Hon'ble High Court of Delhi's order dated 22.08.2014 in WP(C) No. 3560/2014 & CM 7263/2014 in case of Jindal Steel Power & Others Vs. Union of India, final approval of the Central Government is hereby granted under section-2 of the Forest (Conservation) Act, 1980 for diversion of 93.566 ha forest land for open cast mining in Gare Pelma coal block IV/6 coal block in favour of M/s Jindal Steel & Power Limited in Tamnar range in Raigarh district of Chhattisgarh subject to fulfillment of the following conditions:

1. Legal status of the diverted forest land shall remain unchanged
2. Compensatory afforestation over equivalent non-forest land shall be raised and maintained by the State Forest Department from the funds already provided by the user agency;
3. The non-forest land transferred and mutated in favour of the State Forest Department shall be notified by the State Government as RF under Section-4 or PF under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act, 1927 latest within a period of six months from the date of issue of Stage-II approval. The Nodal Officer shall report compliance in this regard along with a copy of the original notification declaring the non-forest land under Section 4 or Section 29 of the Indian Forest Act, 1927, as the case may be, within the stipulated period to the Central Government for information and record;
4. Following activities shall be undertaken by the user agency for the management of safety zone:
 - (a) User agency shall ensure demarcation of boundary of safety zone (7.5 meter strip all along the outer boundary of the mining lease area), and its protection by erecting adequate number of 4 feet high RCC boundary pillars inscribed with DGPS



coordinates and deploying adequate number of watchers under the supervision of the State Forest Department.

- (b) In case of the mining leases adjoining the habitation stretch of the boundary of the safety zone of the lease adjacent to the habitation/roads should be properly fenced by the user agency at the project cost to protect the vegetation /regeneration activities in the safety zone.
 - (c) Safety zone shall be maintained as green belt around the mining lease and to ensure dense canopy cover in the area, regeneration shall be taken in this area by the user agency at the project cost under the supervision of the State Forest Department.
 - (d) Afforestation on degraded forest land, to be selected elsewhere, measuring one and a half times the area under safety zone shall also be done by the user agency at the project cost under the supervision of the State Forest Department.
5. Following activities shall be undertaken by the user agency as per the plan prepared by the Conservator of Forests for which the User Agency has given bank guarantee of Rs. 3.77 crores:
- (a) Proper mitigative measures to minimize soil erosion and choking of streams.
 - (b) Planting of adequate drought hardy plant species and sowing of seeds to arrest soil erosion.
 - (c) Construction of check dams, retention/toe walls to arrest sliding down of the excavated material along the contour.
 - (d) No damage shall be caused to the top-soil and the user agency will follow the top soil management plan.
6. The User Agency shall pay the additional NPV, if so determined, as per the final decision of Hon'ble Supreme Court of India.
7. The period of diversion of the said forest land under this approval shall be for a period co-terminus with the period of the mining lease proposed to be granted under the Mines and Minerals (Development & Regulating) Act, 1957, or Rules framed there under, subject to a maximum period of 30 years;
8. The forest land shall not be used for any purpose other than that specified in the proposal.
9. No labour camps shall be set up inside the forest area.
10. The user agency shall provide fuel wood preferably alternate fuel to the labourers working at the site to avoid damage / felling of trees.
11. The provision of the approved Wildlife Conservation Plan shall be implemented in the project area by the project proponent in consultation with the Chief Wildlife Warden at the project cost.
12. Any tree felling shall be done only when it is unavoidable under strict supervision of the State Forest Department.
13. No damage to the flora and fauna of the adjoining area shall be caused.
14. The user agency shall earmark 1% of the market price of total coal produced and deposit the same with the State Forest Department for the protection and development of forest and wildlife of the area as part of the CSR.
15. The Project Proponent shall bear the cost of depredation of crops by wild elephants, if any, and if required, shall make arrangement for water and food for the migrating elephants at an alternate area.



16. As the user agency is operating large numbers of mines in the Mandraigarh coal fields, they will take up plantation in all the available areas in the Mandraigarh coalfields including soil and moisture conservation measures under the supervision and advice of the Forest Department.
17. The user agency, on a long term policy intervention, will explore the possibility of establishing vocational Training Institutes for training the local youth and employing them in their operations for a minimum period as a part of its CSR.
18. The user agency shall contribute proportionately for the regional wildlife management plan which is under preparation.
19. The user agency will explore the possibility of quarantining high crown density areas.
20. The Stage-II approval shall be subjected to the final order in the matter to be passed by the Hon'ble Supreme Court of India.
21. The user agency shall submit the annual self compliance report in respect of the above conditions to the State Government and to the concerned Regional Office of the Ministry regularly.
22. Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife; and
23. The User Agency and the State Government shall ensure compliance to all other conditions stipulated in Stage-I approval for which user agency has given undertaking and compliance to the provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.

Yours faithfully,

CA

(M. Rajkumar)

Assistant Inspector General of Forests

Copy to:-

1. The Principal Chief Conservator of Forests Government of Chhattisgarh, Raipur.
2. The Nodal Officer, Office of the PCCF, Government of Chhattisgarh, Raipur.
3. The Chief Conservator of Forest (Central), Regional Office, Bhopal.
4. User Agency (M/s Jindal Steel and Power Limited, Gare IV/6, JSPL, Raigarh, Chhattisgarh).
5. Monitoring Cell, FC Division, MoEF&CC, New Delhi.
6. Guard file.

M. Rajkumar
18/5/11

(M. Rajkumar)

Assistant Inspector General of Forests

Government of India
Ministry of Environment, Forest and Climate Change
(Forest Conservation Division)

Indira Paryavaran Bhawan,
Jorbagh Road, Aliganj,
New Delhi - 110003.

Dated: 27th January, 2023

To

The Principal Secretary (Forests)
Government of Chhattisgarh
Nava Raipur

Sub: Request for transfer of Forest Clearance for 93.566 ha forest land in Gare Palma IV/6 coal mine to M/s Jindal Steel & Power Limited (JSPL) – reg. Madam/Sir

I am directed to refer to the Ministry of Coal's letter no. no. NA-104/15/2022-NA dated 08.12.2022 on the above subject requesting this Ministry to transfer the approval granted under the Forest (Conservation) Act, 1980 for non-forestry use of 93.566 ha of forest land for Gare Palma IV/6 Coal Mining Project in the State of Chhattisgarh from the original user agency i.e. M/s Jindal Steel & Power Limited to M/s Jindal Steel and Power Limited (JSPL) in whose favour the coal block was auctioned/re-allotted by the Ministry of Coal.

In this connection, I am directed to say that after careful examination of the proposal for transfer of forest clearance and on the basis of recommendations of the Ministry of Coal, the Central Government hereby conveys its approval for transfer of Gare Palma IV/6 Coal Mining Project in the State of Chhattisgarh in favour of M/s Jindal Steel & Power Limited (JSPL).

Approval of the Central Government for transfer of above approval granted under the Forest (Conservation) Act, 1980 shall be subject to the following conditions:

- i. Lease transfer charges @ 10% of the NPV or ₹1,00,000/- (1 Lakh) whichever is less will be realized from the new user agency and will be deposited in the account of Ad-hoc CAMPA before execution of lease in favour of the new user agency.
- ii. Reimbursement of amount paid by the original user agency shall be dealt with in the manner, as provided in the Coal Mines (Special Provisions) Second Ordinance, 2014 and Rules framed thereunder.
- iii. The new user agency shall pay the NPV as per the approval granted under FC Act if not paid earlier. The new user agency shall also furnish an undertaking to pay the additional NPV, if so determined by the Hon'ble Supreme Court of India.
- iv. The State Government shall upload the KML files of the diverted area, CA land, Wildlife Management Plan area, SMC works, as the case may be, on

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the e-Green Watch portal of the Forest Survey of India and details of the same shall be informed to the IRO Raipur and Ministry through annual self-compliance report.

- v. The user agency shall, after ceasing mining operations, undertake re-grassing of the mining area, and any other areas which have been disturbed due to their mining activities and restore the land to a condition which is fit for growth of flora and fauna, etc.
- vi. The State Government shall ensure that the guidelines issued by the Ministry vide letter dated 07.11.2022 shall be strictly followed in respect of the safety zone
- vii. The new user agency shall abide by all the conditions on which the forest land diverted/leased out in favour of the original user agency.
- viii. The new user agency shall abide by any other condition that may be stipulated by the Central Government/Regional Offices/State Government in future in the interest of conservation, protection and development of forests and wildlife.
- ix. The user agency shall comply all the provisions of the all Acts, Rules, Regulations, Guidelines, Hon'ble Court Order (s) and NGT Order (s) pertaining to this project, if any, for the time being in force, as applicable to the project; and
- x. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as prescribed in para 1.21 of Chapter 1 of the Handbook of comprehensive guidelines of Forest (Conservation) Act, 1980 as issued by this Ministry's letter No. 5-2/2017-FC dated 28.03.2019.

Signed by Suneet Bhardwaj
Date: 27-01-2023 18:25:19

Yours faithfully,

Sd/-
(Suneet Bhardwaj)
Assistant Inspector General of Forests

Copy to:

1. Secretary Ministry of Coal, Gol, Shastri Bhawan, New Delhi.
2. PCCF (HoFF), State Forest Department, Government of Chhattisgarh, Raipur
3. Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh, Raipur
4. Regional Officer (Central), Integrated Regional Office of MoEF&CC at Raipur.
5. User Agency (M/s Jindal Steel & Power Limited).
6. Monitoring Cell, FC Division, MoEF&CC, New Delhi.